19th Judicial Circuit Court Judge Steven J. Levin
Guidelines and Procedures

Circuit Civil Non-Jury Division

Effective December 10, 2025

(Please note these guidelines and procedures pertain to all civil non-jury cases in Saint Lucie County, excluding residential foreclosure cases. Procedures pertaining to residential foreclosure cases are set forth within a separate document posted on https://www.circuit19.org/judges/steven-levin-j)

PLEASE REVIEW ALL PROCEDURES PRIOR TO CONTACTING THE JUDGE'S OFFICE

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COMMUNICATIONS WITH JUDGE'S OFFICE: Please do not ask the Judicial Assistant or other Court personnel to communicate any message to the Judge. This is prohibited ex-parte communication. The Court's staff is not permitted to relay ex-parte information to the Judge. This office can best respond to all communications via e-mail to: SLCJudge11@circuit19.org. E-mails must contain the case name, case number, subject matter and relevant date(s). Please ensure that all e-mails are also copied to all opposing counsel and/or *pro se parties* and indicate same in the body of your e-mail to prevent ex-parte communication to the Court.

PAPERLESS OFFICE: This office is paperless. Therefore, all correspondence, motions, hearing materials, trial materials, etc. should be sent by EMAIL in PDF format to the Judicial Assistant at SLCJudge11@circuit19.org. Although discouraged, if you lack the ability to transmit documents by email, you may deliver or mail hard copy documents. Hearing materials should be provided to the Court at least five (5) business days before the hearing. Highlighting pertinent sections and brevity is appreciated. Please do not mail binders of hearing materials to the judge's office. When submitting material as outlined in this section, please limit case law to the one or two best cases you will be relying upon at the hearing.

Case law can be provided to the Court during the hearing.

ORDER PREPARATION & SUBMISSION: Only agreed orders will be considered by the Court in chambers without a hearing, unless the proposed order is requested by the Court. Proposed orders must be submitted in Microsoft Word format. Proposed order's title must describe the subject and ruling of the Court, *i.e.* "Order Granting Plaintiff's Motion for Partial Summary Judgment on Liability", and shall contain the name and e-mail service address for all parties. *See,* Fla.R.Civ.P., Rule 1.100(c)(1). If any party does not have an e-mail service address, that party's physical service address shall be contained in the proposed order and it must be noted that the moving party shall serve each party who does not have an email address and file a certificate of such service.

Do not send your proposed orders by email in advance of the hearing date to the Court's Judicial Assistant.

If counsel is asked to prepare an order after a hearing, the order shall be drafted and circulated within 2 business days of the hearing, submitted to the Court via e-mail to SLCJudge11@circuit19.org, and indicating in the subject line of the email "AFTER HEARING ORDER," with a transmittal letter confirmation to all counsel and p*ro se* parties within 7 business days after the hearing. The Court will not execute proposed orders, agreed orders, or stipulations without transmittal confirmation to all counsel of record and *pro se parties*. The transmittal letter shall be authored by counsel of record versus an office paralegal or other staff. All proposed orders shall have the following language under the service list:

A COPY OF THIS ORDER IS BEING SERVED ON THE FOLLOWING PARTIES VIA THE E-FILING PORTAL:
(Include the parties with email addresses below this paragraph)

PLAINTIFF'S/DEFENDANT'S COUNSEL SHALL SERVE A COPY OF THIS ORDER ON THE FOLLOWING PARTIES IMMEDIATELY AND FILE A CERTIFICATE OF SERVICE IN THIS COURT FILE:
(Include the parties with physical addresses below this paragraph)

COURT REPORTERS: Fla. R. Jud. Admin. 2.535(b) requires that the party requesting a court reporter must arrange for and pay the reporting fees for any hearing or trial. This requirement shall not preclude taxation of costs as authorized by law.

SETTLEMENT OF CASES: If your case settles, immediately notify the Judicial Assistant via e-mail, with transmittal confirmation to all parties, ATTACHING AN ALREADY E-FILED NOTICE OF SETTLEMENT, DISMISSAL DOCUMENTS AND FINAL DISPOSITION FORM.

A. PRETRIAL PROCEDURES

COMPLIANCE WITH AO 2021-05 MANDATORY/ CIVIL CASE MANAGEMENT AND RESOLUTION: Please see Administrative Order 2021-05; **Compliance is required**. The party initiating a civil action in this division must serve a case management plan and order with the summons and complaint. A fillable case management order is available on the Court's web page. The completed case management plan and order must be submitted to Judge Levin's office by Plaintiff/Plaintiff's counsel for final approval no later than thirty (30) days after the last defendant is served with the complaint. For cases subject to a statutory stay or moratorium that prevents prosecution of the case, the completed case management plan and order must be submitted to Judge Levin's office by Plaintiff/Plaintiff's counsel within forty-five (45) days after the stay or moratorium ends or within thirty (30) days after service of the complaint or the last of all defendants (whichever date is later).

A Notice of Non-Compliance shall be filed if the parties are unable to comply with the Case Management Plan and Order procedures or an Order Requiring Filing of Mandatory Case Management Plan. The notice shall include the reasons the parties are unable to comply. The notice shall be filed in the court file and submitted to the Court for review.

HEARING SCHEDULING: All motions must be e-filed PRIOR to setting a hearing; however, the mere filing of a motion is insufficient to set a motion for hearing. The motion must be set for hearing to bring the matter to the Court's attention. The moving party shall furnish a copy of the Notice of Hearing to the Judge's Judicial Assistant within five (5) days of setting the hearing. If the notice is not received by the Judge's office as previously directed, the matter will not be heard. Proposed orders **do not** need to be sent to the Court prior to the hearing unless requested. Please provide the Judge's office with the notice of hearing and motion to be heard via e-mail only, at SLCJudge11@circuit19.org.

Uniform Motion Calendar (5-minute, non-evidentiary hearings) and Special Set Hearings (45 minutes or less) must be scheduled online by counsel. All UMC hearings must be noticed for 10:00 a.m. or as scheduled on the online calendar. Please refer to Judge Levin's' on-line calendar to confirm and schedule available dates. Parties will be restricted to the time allotted for the hearing. Attorneys who repeatedly abuse the online scheduling requirements may be denied further privileges of self-scheduling. Any hearings requiring more than 45 minutes must be scheduled by contacting the Judicial Assistant via e-mail, with the attached copy of the Motion already e-filed with the Clerk, and a statement explaining exactly why more than 45 minutes is needed.

Hearings may be attended via Zoom unless otherwise instructed by the Court. The Notice of Hearing must include both the courthouse address and Zoom link.

Hearings on UMC are limited to five (5) minutes per case (not per motion). Additional motions may not be "piggy-backed" by cross-notice unless counsel first confirms with opposing parties and the online calendar, that sufficient additional time is available and can be reserved for same. UMC is heard on a "first come, first serve" basis. After proper notice, failure of any party to appear at the hearing shall not prevent a party from proceeding with the matter when the case is called. If the party noticing the matter for hearing chooses to wait for the absent party, the matter may be passed over until the end of the calendar. If UMC time expires, any remaining hearings will need to be rescheduled.

Contested motions for summary judgment, evidentiary motions and complex, highly contested motions will not be heard at UMC. Proposed orders are to be submitted after the hearing in Word format to SLCJudge11@circuit19.org and indicating "AFTER HEARING ORDER" in the subject line of the email.

The types of motions suitable for hearing on the Uniform Motion Calendar include simple motions, such as motions to strike affirmative defenses, amend pleadings, short discovery motions, etc. UMC is available to pursue a summary final judgment for liquidated damages, after a default based upon a proper motion with supporting documentation, unless a party appears to contest it. In that instance, the parties must reset on the on-line "special set" calendar. Please do not set a non-qualifying motion on UMC simply because special set hearing time is not available immediately.

Default motions must be set for hearings at a UMC or a 5-minute Special Set/Civil Non-Jury time. A Notice of Hearing must be sent to all parties, including the defaulting party. The courthouse address and Zoom link must be on the notice.

HEARING CANCELLATION: Cancellation of any hearing must be done: (1) through the **online** Court scheduling calendar; (2) by **e-filing** a Notice of Cancellation of Hearing in advance of the hearing date; **and** (3) sending a courtesy copy of your Notice of Cancellation of Hearing to the Judicial Assistant via **email**, once you have e-filed same.

EMERGENCY HEARINGS: If an emergency situation arises, counsel may request that a hearing be set on short notice. The body of the motion must contain a detailed explanation of the circumstances constituting the emergency as well as the substance of the motion. The motion must be e-mailed to the Court at SLCJudge11@circuit19.org, along with a transmittal confirmation from counsel, before a hearing will be set. The Court will review the motion and, if it is determined an emergency exists, the Judicial Assistant will contact counsel to set the hearing.

COOPERATION OF COUNSEL: Hearings must be cleared with opposing counsel and/or *pro se parties*. Good faith cooperation is expected from counsel, their support staff, and *pro se litigants*. Should counsel, their staff, or *pro se litigants* fail to respond within 3 business days, or refuse to cooperate in obtaining or in setting a hearing, the difficulty should be set forth either in the motion or in the notice of hearing. After 3 days, the requesting party may unilaterally set a hearing. Notice of the hearing must be provided at least five (5) business days prior to the hearing. All motions must comply with the Florida Rules of Civil Procedure, including, but not limited to, a certification that the movant, in good faith, has conferred or attempted to confer with the person or party failing to make discovery in an effort to secure the information without Court action. *See,* Fla.R.Civ.P., Rule 1.380(a)(2). All notices of hearing shall contain a certification signed by the scheduling attorney in substantially the following form:

I HEREBY CERTIFY that I have personally contacted opposing counsel in an effort to resolve the issue(s), however, the matter cannot be resolved and a hearing is necessary.

Please note that certifications containing language to the effect that an effort will be made to resolve the issue in the future is NOT sufficient. Failure to comply with this requirement may result in cancellation of the hearing by the Court. If it is determined that the certification is not true, other sanctions may be imposed, including a referral to the Florida Bar or local professionalism panel.

MOTION TO DISMISS: All Motions to Dismiss are like any other motion as mentioned above.

MOTIONS FOR MORE DEFINITE STATEMENT and MOTIONS TO COMPEL: All Motions for More Definite Statement and Motions to Compel will be treated as any other motion outlined above. These motions must be set on a Civil Non-Jury UMC or Special Set date for a 5 to 10-minute hearing - MONDAYS and TUESDAYS only. A second Motion to Compel or Motion for More Definite Statement shall be set on Monday or Tuesday only and all parties must appear in person for a second such motion on the same case.

MOTIONS FOR PROTECTIVE ORDERS: The filing of a motion for protective order, without presenting it to the Court, is insufficient. The party filing such order must email the motion to the Judicial Assistant, and set same for hearing.

MOTIONS FOR REHEARING, RECONSIDERATION OR NEW TRIAL: Upon the filing of such motion, the moving party shall send a copy to the Court for review via e-mail. The copy of the motion shall be accompanied by a proposed order and transmittal confirmation to all counsel. If the Court determines that a hearing is necessary, the movant will be instructed to set a hearing on the judge's online calendar.

WITHDRAW OR SUBSTITUTION OF COUNSEL: Compliance with Fla. R. Jud. Admin. 2.505 is required. Written client consent must be filed, or a hearing must be held after proper notice to the client.

MOTION TO CONTINUE: Any motion to continue must comply with Florida Rule of Civil Procedure 1.460, including requirement of signature by the party requesting continuance. **Simply filing a motion to continue will not suffice to continue the case. Your case will not necessarily be continued because both parties agree.**

CASE MANAGEMENT CONFERENCE: The Court will schedule certain cases for a formal Case Management Conference ("CMC") and issue an order setting forth the matters to be covered at the conference. However, a request can be made by any party to set a CMC by simply filing a written motion. A copy of the motion to set CMC shall be sent to the Judge's Judicial Assistant via email with a proposed order in Word format. Further, the Parties will be ordered to coordinate and set a fifteen (15) minute CMC on the Court's Civil Special Set Hearing docket within the month agreed to in the current Agreed Case Management Plan, or by a date otherwise designated by the Court. A written motion is not required if the Parties have been ordered to set the CMC. Parties shall file and submit to the Court via email a Notice of Hearing within five (5) days of setting the CMC. The court may schedule the case for trial at the case management conference, if the court deems appropriate.

MEDIATION: All cases must complete a meaningful mediation after the pleadings have been filed pursuant to the Case Management Plan. If the case is not resolved, the parties are then required to attend Docket Call (may attend via Zoom) and a 2nd mediation must take place after Docket Call.

SETTING OF TRIALS: The Parties will be ordered to coordinate and set a CMC on the Court's Civil Special Set Hearing docket within the month agreed to in the current Agreed Case Management Plan, or by a date otherwise designated by the Court. A written motion is not required if the Parties have been ordered to set the CMC. Parties shall file and submit to the Court via email a Notice of Hearing for the coordinated CMC date. The Court will issue an Order Setting Non-Jury Trial from the CMC. The parties are expected to be ready for trial by the projected trial date listed in the Agreed Case Management Plan unless extensions have been granted by Order of the Court.

CASE DISPOSITIONS: If at any time after the entry of the Order Approving Agreed Case Management Plan, this case is dismissed, or results in a completed settlement, Counsel must immediately file a Notice of Settlement and send a copy to the Court. **Counsel must expeditiously file all paperwork necessary to close the case.**